

TENTATIVE RULING

Case: Lewis v. Swartz et al.
Case No. CV-2023-1829

Hearing Date: February 27, 2026 **Department Eleven** **9:00 a.m.**

The Court rules on defendants Cemex, Inc., Cemex Construction Materials Pacific, LLC, and Bert Swartz' request for judicial notice as follows:

- As to requests 1 through 3, judicial notice is **GRANTED**. (Evid. Code, §§ 452, subds. (c), (h), 453; *Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist.* (2021) 62 Cal.App.5th 583, 600 [“[i]n taking judicial notice of an official document, a court may take notice not only of the fact of the document but also facts that can be deduced, and/or clearly derived from, its legal effect, such as the names and dates contained in the document, and the legal consequences of the document.”].)
- As to requests 4 and 5, judicial notice is **DENIED**. (Evid. Code, §§ 452, subd. (b), (h), 453; see *Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10 [“Simply because information is on the Internet does not mean that it is not reasonably subject to dispute. (Evid. Code, § 452, subds. (g), (h).)”].)

The Court **GRANTS** plaintiff Ronald Lewis' request for judicial notice. (Evid. Code, §§ 452, subd. (c), 453.); However, while the courts take judicial notice of public records, they do not take notice of the truth of all matters stated therein. (*Love v. Wolf* (1964) 226 Cal.App.2d 378, 403.) The official character of a document will not make otherwise inadmissible material therein admissible. (*Ibid.*)

The Court declines to rule on plaintiff's evidentiary objections to defendants' evidence as the evidence objected to is not germane to the disposition of defendants' motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court rules on defendants' objections to plaintiff's evidence as follows:

- The Court declines to rule on defendant's evidentiary objections numbers 1 – 16 and 18 - 29 as the evidence objected to is not germane to the disposition of defendant's motion. (Code Civ. Proc., § 437c, subd. (q).)
- The Court **OVERRULES** defendants' objection number 17 because the evidence objected to is not in paragraph 19 of plaintiff's declaration and does not contradict plaintiff's deposition testimony.
- Based on the Court's ruling above regarding plaintiff's request for judicial notice, the Court **OVERRULES** defendants' objection to numbers 30 – 37.

Even though plaintiff's separate statement [staring at page 53] fails to comply with the formatting requirements of California Rules of Court, rule 3.1350(d)(3), the Court, in its discretion, will consider it.

The Court declines to consider new arguments or evidence presented by defendants in their reply brief. New arguments may not be raised for the first time in a reply brief. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 – 1538 [“[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.”].)

The Court declines to consider defendants' undisputed material facts numbers 14, 15, 29, 33, 34, 36 and 42 through 44, because by simply incorporating by reference prior undisputed material facts, rather than stating them in their entirety, defendants fail to comply with California Rules of Court, rule 3.1350(d).

The Court rules on defendants' motion for summary judgment or, in the alternative, summary adjudication as follows:

- As to Issue number 1, the Court **GRANTS** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The Court finds that defendants have met their initial burden to show that Cemex, Inc., and Cemex California Aggregates, Inc., were not plaintiff's employer. (Corp. Code, § 1905; Labor Code 226, *Laird v. Capital Cities/ABC, Inc.* (1998) 68 Cal.App.4th 727, 737; UMFs 1, 5; FAC, ¶¶ 8, 12 – 28.) Further, plaintiff has not met his burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th at pp. 850, 862.)
- As to Issue numbers 2 and 3, the Court **DENIES** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.) The Court finds that defendants have not met their initial burden to negate an essential element of plaintiff's first cause of action for age discrimination under FEHA. (Gov. Code section 12940, subd. (a); *Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 713; see *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, 802; *Sada v. Robert F. Kennedy Med. Ctr.* (1997) 56 Cal.App.4th 138, 150 – 151 [“...in the case of a motion for summary judgment or summary issue adjudication, the burden rests with the moving party to negate the plaintiff's right to prevail on a particular issue.”]; *Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 32 [upon summary adjudication of an employment discrimination claim, the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon a legitimate, nondiscriminatory reason].)

- As to Issue number 4 the Court **DENIES** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.) The Court finds that defendants fail to provide any relevant legal authority regarding an employer's liability for harassment by a non-supervisory employee. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)
- As to Issue number 5, the Court **GRANTS** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.) The Court finds that defendants have met their initial burden to show that the comments made by Bert Swartz were not based on age. (Gov. Code, § 12940, subd. (j)(1); see *Aguilar, supra*, 25 Cal.4th at pp 130 – 131; UMF 13, 30.) Further, plaintiff has not met his burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th at pp. 850, 862.)
- As to Issue number 6, the Court **DENIES** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.) The Court finds that defendants have not met their initial burden to show that the affirmative defense of avoidable consequences applies because the Court declined to consider the only undisputed material fact cited in support of this issue. (See *McDonnell Douglas Corp., supra*, 411 U.S. at p. 802; *Sada, supra*, 56 Cal.App.4th at pp. 150 – 151; *Zamora, supra*, 71 Cal.App.5th at p. 32; UMF 33.)
- As to Issue number 7, the Court **DENIES** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.) The Court finds that defendants have not met their initial burden to negate an essential element of plaintiff's third cause of action for retaliation under FEHA. (Gov. Code, § 12940, subd. (h); see *Nazir v. United Airlines Inc.* (2009) 178 Cal.App.4th 243, 286 – 287; see *McDonnell Douglas Corp., supra*, 411 U.S. at p. 802; *Sada, supra*, 56 Cal.App.4th at pp. 150 – 151; *Zamora, supra*, 71 Cal.App.5th at p. 32; FAC 55.)
- As to Issue numbers 8 and 9 the Court **DENIES** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.) The Court finds that defendants have not met their initial burden to negate any essential elements of plaintiff's fourth cause of action for whistleblower retaliation in violation of Labor Code Section 1102.5 and 6310. (Lab. Code, §§ 1102.6, 6400, 6401; *Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1384; *Mokler v. County of Orange* (2007) 157 Cal.App.4th 121, 138-140; *Morgan v. Regents of the University of California* (2000) 88 Cal.App.4th 52, 69-70; *St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301, 314; see *Scheer v. Regents of University of California* (2022) 76 Cal.App.5th 904, 914; see also *McDonnell Douglas Corp., supra*, 411 U.S. at p. 802; *Sada, supra*, 56 Cal.App.4th at pp. 150 – 151; *Zamora, supra*, 71 Cal.App.5th at p. 32; UMF 40; FAC, ¶¶ 62, 63.)

- As to Issue number 10, the Court **DENIES** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.) The Court finds that as plaintiff's FEHA causes of action survive this motion, plaintiff's fifth cause of action for wrongful termination in violation of public policy and sixth cause of action for unfair competition also survive. (See *Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1169; see also *AMN Healthcare, Inc. v. Aya Healthcare Services, Inc.* (2018) 28 Cal.App.5th 923, 949-950.)
- As to Issue number 11, the Court **DENIES** summary adjudication. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.) The Court finds that defendants have not met their initial burden to negate plaintiff's claim for punitive damages. (Civ. Code, § 3294; *Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1158-1159; see *White v. Ultramar* (1999) 21 Cal.4th 563, 573; see also plaintiff's response to UMF 52.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Munoz et al. v. Fairview Investment Fund VIII, LP et al.**
Case No. CV-2025-2796

Hearing Date: **February 27, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiffs Joseph Michael Munoz III, individually; Joseph Michael Munoz III and Kimberlee A. Puente, Trustees of the Guinane-Munoz-Puente Family Trust’s request for a preliminary injunction is **GRANTED**. (Code Civ. Proc., § 526 et seq.) Plaintiffs have shown that they are likely to suffer irreparable harm if the requested injunction is not issued. (*Costa Mesa City Employees' Assn. v. City of Costa Mesa* (2012) 209 Cal.App.4th 298, 305; *Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1352; *Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528 [“The general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action.”]; see also *West Coast Constr. Co. v. Oceano Sanitary Dist.* (1971) 17 Cal.App.3d 693, 700-701.) Plaintiffs have presented substantial evidence that they will be harmed absent injunctive relief. (Munoz, III, Decl., ¶ 11; see Complaint, ¶¶ 1-4 & 8-9.) The Court also finds an imminent threat of harm. (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084; Munoz, III, Decl., ¶ 11; see Stemm Decl., ¶¶ 14, 16, Exhibits 9, 11.)

Further, plaintiffs have established a reasonable probability that they will prevail on the merits of their complaint. (Corp. Code, § 16403; *Butt v. State of California* (1992) 4 Cal.4th 668, 678; Munoz, III, Decl., ¶¶ 7, 8, 11, Exhibits 6, 7; see Stemm Decl., ¶¶ 5, 9 – 13, 16, Exhibits 1, 4 – 8 and 11; Complaint, ¶¶ 1-4 & 8-9.)

Finally, the Court finds that the balance of interim harm weighs in favor of plaintiffs’ request for injunctive relief. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 633; *Continental Baking Co., supra*, 68 Cal.2d at p. 528; Munoz, III, Decl., ¶¶ 3, 11, Exhibit 3; Stemm Decl., ¶¶ 5, 14, 16, Exhibits 1, 9, 11.)

Parties are **DIRECTED TO APPEAR** to determine an appropriate undertaking. (Code Civ. Proc., § 529.)